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Case Number: 24STCV04013 Hearing Date: July 1, 2026 Dept: 509

Rondell Hotel, LLC, et al. v. Nadel Residential & Commercial, Inc., et al.

MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT

MOVING PARTY: Plaintiffs Rondell Hotel, LLC and Rondell Oasis, LLC

RESPONDING PARTY(S): None

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Plaintiffs Rondell Hotel, LLC, and Rondell Oasis, LLC, (Plaintiffs) bring this action for breach of contract arising from the construction of a hotel. There are three independent contracts at issue giving rise to three causes of action for breach of contract: (1) By Plaintiff against Defendant Nadel Residential & Commercial, Inc. for breach of an architectural agreement; (2) By Plaintiff against Defendants John Kular Consulting, LLC, and John Kular for breach of two civil engineering agreements; and (3) by Plaintiff against Defendants BP Consulting Engineers, Inc., and Kulwant S. Brah for breach of a structural engineering agreement. Defendants John Kular Consulting, LLC, and John Kular have been dismissed.

Plaintiffs now move for leave to file a first amended complaint. No opposition was filed. Defendant Nadel Residential & Commercial, Inc. filed a notice of non-opposition.

TENTATIVE RULING:

Plaintiffs' Motion for Leave to File a Second Amended Complaint is GRANTED.

The standalone Second Amended Complaint must be filed within 10-days and timely served on all parties as required by law.

Moving parties are ordered to give notice.

DISCUSSION:

Motion for Leave to File Second Amended Complaint

I. Legal Standard

If a plaintiff wishes to amend a complaint after the answer has been filed or after the demurrer has been filed and after the hearing on the demurrer, or if he or she has already amended the complaint “of course,” permission of the court must be obtained before the amendment will be allowed. (Code Civ. Pro. §§ 473, subd. (a)(1), 576.)

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Motions for leave to amend the pleadings are directed to the sound discretion of the court. “The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading. . . .” (Code Civ. Pro. § 473, subd. (a)(1); see Code Civ. Pro. § 576.) Policy favors liberally granting leave to amend so that all disputed matters between the parties may be resolved. (See *Howard v. County of San Diego* (2010) 184 Cal.App.4th 1422, 1428.) Absent prejudice to the adverse party, the court may permit amendments to the complaint “at any stage of the proceedings, up to and including trial.” (*Atkinson v. Elk Corp.* (2003) 109 Cal.App.4th 739, 761 [internal quotes omitted].)

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Although denial is rarely justified, a judge has discretion to deny leave to amend if the party seeking the amendment has been dilatory, and the delay has prejudiced the opposing party. (*Morgan v. Sup.Ct.* (1959) 172 Cal.App.2d 527, 530; see also *Hirsa v. Superior Court* (1981) 118 Cal.App.3d 486, 490). An opposing party is prejudiced where the amendment would necessitate a trial delay along with a loss of critical evidence, added preparation expenses, increased burden of discovery, etc. (*Magpali v. Farmers Group, Inc.* (1996) 48 Cal.App.4th 471, 486-488.)

Ordinarily, the court will not consider the validity of the proposed amended pleading in ruling on a motion for leave since grounds for a demurrer or motion to strike are premature. The court, however, does have discretion to deny leave to amend where a proposed amendment fails to state a valid cause of action as a matter of law and the defect cannot be cured by further amendment. (See *California Casualty General Ins. Co. v. Superior Court* (1985) 173 Cal.App.3d 274, 281 (overruled on other grounds by *Kransco v. American Empire Surplus Lines Ins. Co.* (2000) 23 Cal.4th 390.))

II. Analysis

Here, Plaintiffs seek “to add new causes of action for Fraud, Unfair Business Practices and Rescission as to Defendant NADEL RESIDENTIAL AND COMMERCIAL, INC. (hereafter “NADEL”) and to withdraw all reference to settled Defendant John Kular and his business organization.” (Booth Decl. ¶2.)

With an absent of prejudice to the adverse party, the court may permit amendments to the complaint “at any stage of the proceedings, up to and including trial.” (*Atkinson v. Elk Corp.*, supra, 109 Cal.App.4th at p. 761 [internal quotes omitted].) Courts recognize a “policy of great liberality in allowing amendments at any stage of the proceeding so as to dispose of cases upon their substantial merits.” (*Bd. of Trustees v. Superior Ct.* (2007) 149 Cal.App.4th 1154, 1163.) No defendant has opposed this motion and therefore, has not demonstrated any prejudice by allowing this amendment. Consistent with these settled policies, Plaintiffs’ motion for leave to file the second amended complaint is proper.

This Court takes no position at this time on the viability of the amendment proposed by the Plaintiffs. Rather, the “better course of action” is to permit the amendment, “and then let the parties test its legal sufficiency in other appropriate proceedings.” (*Atkinson v. Elk Corp.*, supra, 109 Cal.App.4th at p. 760.)

Accordingly, Plaintiffs' Motion for Leave to File a Second Amended Complaint is GRANTED.

IT IS SO ORDERED.

Dated: July 1, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

Any party may submit on the tentative ruling by contacting the courtroom via email at by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.